

**Court No. - 21**

**Case :-** WRIT - C No. - 55072 of 2012

**Petitioner :-** M/S Abdulla & Company Rice Mill

**Respondent :-** Chief Engineer, Distribution Division And Others

**Petitioner Counsel :-** Ranjit Saxena,Deepak Saxena

**Respondent Counsel :-** C.S.C.,Nripendra Mishra

**Hon'ble Satya Poot Mehrotra,J.**

**Hon'ble Het Singh Yadav,J.**

On prayer made by Shri Nripendra Mishra, learned counsel for the respondent nos. 1,2, 4 and 5, the case is directed to be put up as fresh on 19.10.2012 so as to enable him to obtain instructions in the matter.

**Order Date :-** 17.10.2012

R

**Court No. - 21**

**Case :-** WRIT - C No. - 55072 of 2012

**Petitioner :-** M/S Abdulla & Company Rice Mill

**Respondent :-** Chief Engineer, Distribution Division And Others

**Petitioner Counsel :-** Ranjit Saxena,Deepak Saxena

**Respondent Counsel :-** C.S.C.,Nripendra Mishra

**Hon'ble Satya Poot Mehrotra,J.**

**Hon'ble Het Singh Yadav,J.**

Case called out in the revised list.

None is present for the petitioner.

Put-up as fresh on 26.11.2012.

**Order Date :-** 2.11.2012

aks

**Court No. - 21**

**Case :-** WRIT - C No. - 55072 of 2012

**Petitioner :-** M/S Abdulla & Company Rice Mill

**Respondent :-** Chief Engineer, Distribution Division And Others

**Petitioner Counsel :-** Ranjit Saxena, Deepak Saxena

**Respondent Counsel :-** C.S.C., Nripendra Mishra

**Hon'ble Satya Poot Mehrotra, J.**

**Hon'ble Het Singh Yadav, J.**

Pursuant to the order dated 2.11.2012, the case has been put up today as a fresh case.

Shri Nripendra Mishra, learned counsel for the respondent nos. 1, 2, 4 and 5 states that a Short Counter Affidavit on behalf of the said respondents has been filed in the Registry on 5.11.2012. The Short Counter Affidavit is not on record.

Office is directed to trace out the same and place it on record.

Put up as fresh on 13.12.2012.

**Order Date :-** 26.11.2012

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**Court No. - 21**

**Case :-** WRIT - C No. - 55072 of 2012

**Petitioner :-** M/S Abdulla & Company Rice Mill

**Respondent :-** Chief Engineer, Distribution Division And Others

**Petitioner Counsel :-** Ranjit Saxena,Deepak Saxena

**Respondent Counsel :-** C.S.C.,Nripendra Mishra

**Hon'ble Satya Poot Mehrotra,J.**

**Hon'ble Het Singh Yadav,J.**

Let the papers be placed before the Hon'ble The Acting Chief Justice for nominating another Bench of which both of us are not members.

**Order Date :-** 13.12.2012

Ajeet...

**Court No. - 36**

**Case :-** WRIT - C No. - 55072 of 2012

**Petitioner :-** M/S Abdulla & Company Rice Mill

**Respondent :-** Chief Engineer, Distribution Division And Others

**Petitioner Counsel :-** Ranjit Saxena,Deepak Saxena

**Respondent Counsel :-** C.S.C.,Nripendra Mishra

**Hon'ble Vineet Saran,J.**

**Hon'ble Mushaffey Ahmad,J.**

As prayed, put up day after tomorrow as a fresh case.

**Order Date :-** 18.12.2012

dps

(Mushaffey Ahmad, J.)      (Vineet Saran, J.)

**Court No. - 36**

**Case :-** WRIT - C No. - 55072 of 2012

**Petitioner :-** M/S Abdulla & Company Rice Mill

**Respondent :-** Chief Engineer, Distribution Division And Others

**Petitioner Counsel :-** Ranjit Saxena,Deepak Saxena

**Respondent Counsel :-** C.S.C.,Nripendra Mishra

**Hon'ble Vineet Saran,J.**

**Hon'ble Mushaffey Ahmad,J.**

List this case in the next cause list so as to enable the petitioner to file supplementary affidavit.

Order Date :- 20.12.2012

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(Mushaffey Ahmad, J.) (Vineet Saran, J.)

**Court No. - 36**

**Case :-** WRIT - C No. - 55072 of 2012

**Petitioner :-** M/S Abdulla & Company Rice Mill

**Respondent :-** Chief Engineer, Distribution Division And Others

**Petitioner Counsel :-** Ranjit Saxena, Deepak Saxena

**Respondent Counsel :-** C.S.C., Nripendra Mishra

**Hon'ble Vineet Saran, J.**

**Hon'ble Virendra Vikram Singh, J.**

Learned counsel for the petitioner states that he has filed a supplementary affidavit in the office on 9.1.2013. The same is not on record.

Office is directed to trace it out and place it on record.

List in the next cause list.

**Order Date :-** 16.1.2013

SKD

(Virendra Vikram Singh, J.) (Vineet Saran, J.)

**Court No. - 36**

**Case :-** WRIT - C No. - 55072 of 2012

**Petitioner :-** M/S Abdulla & Company Rice Mill

**Respondent :-** Chief Engineer, Distribution Division And Others

**Petitioner Counsel :-** Ranjit Saxena, Deepak Saxena

**Respondent Counsel :-** C.S.C., Nripendra Mishra

**Hon'ble Vineet Saran,J.**

**Hon'ble Pankaj Naqvi,J.**

A request of adjournment has been made on behalf of the petitioner, which is allowed. List in the next cause list before the appropriate Bench. It shall not be treated as tied up or part heard to this Bench.

**Order Date :-** 8.2.2013

Anupam

(Pankaj Naqvi) (Vineet Saran)



**Court No. - 32**

**Case :-** WRIT - C No. - 55072 of 2012

**Petitioner :-** M/S Abdulla & Company Rice Mill

**Respondent :-** Chief Engineer, Distribution Division And Others

**Counsel for Petitioner :-** Ranjit Saxena, Deepak Saxena

**Counsel for Respondent :-** C.S.C., Nripendra Mishra

**Hon'ble Arvind Kumar Tripathi, J.**

**Hon'ble Salil Kumar Rai, J.**

Learned counsel for the petitioner, learned Standing Counsel and perused the record.

The present writ petition has been filed with the prayer to issue writ, order or direction in the nature of certiorari quashing the order dated 31.7.2012 No.2259 issued by the Executive Engineer Electricity Distribution Division IInd, Paschimanchal Vidyut Vitran Nigam Ltd. Rampur connection No.150/1410/05216 with further prayer to direct the U.P. Power Corporation Ltd. to pay heavy compensation for harassment of the petitioner by passing an order based on Clause-6.9 (II) (C) of the U.P. Electricity Supply Code, 2005 enforce on 18.2.2005 and has been already deleted by the amendment of 4th Amendment, 2007 dated 14.6.2008 which has been published in a Govt. Gazette on 14.6.2008 in the Govt. Gazette while impugned order have been passed by the Executive Engineer Electricity Distribution Division IInd, Paschimanchal Vidyut Vitran Nigam Ltd. Rampur on 31.7.2012 connection No.150/1410/05216.

Learned counsel for the petitioner informed that all the disputed amount has been adjusted in the bill hence no further direction is required and as such present petition has become infructuous.

In view of the fact, present petition is dismissed.

**Order Date :-** 4.12.2017

Pramod